IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-III

ITEM No. 315
CP.CAA-15(ND)/2024

IN THE MATTER OF:
SVG MEDIA PRIVATE LIMITED AND AMNET TRADING INDIA PRIVATE LIMITED .... Petitioner/Applicant

Order under Section 230-232 of the Companies Act, 2013

Order delivered on 03.02.2025

CORAM:
SHRI BACHU VENKAT BALARAM DAS
HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:

For Petitioner	:	Mr. Ashish Middha, Mr. Naresh Kumar Advs.
For the ITD	:	Mr. Puneet Rai, SSC, Mr. Ashvini Kr, Mr. Rishabh Nangia, Mr. Nikhil Jain Advs.
For the RD	:	Mr. Sumit Kansal, Mr. Aryan Gupta Advs.

ORDER

On 14.10.2024, the following order was passed:

> *"Mr. Nikhil Jain, Ld. Counsel appearing for Income Tax Department has stated that there are huge outstanding demands against the Transferor Company for which no undertaking has been given by said Transferee Company for payment of demands whereas, the Transferor Company has given an undertaking. We therefore, direct the Applicant to file an undertaking by the Transferee Company.*
>
> *List the matter on 02.12.2024."*

On 09.12.2024, the following order was passed:

> *"In compliance with the order dated 14.10.2024, the Applicant has filed an undertaking with respect to the Transferee Company. Learned Counsel appearing for the Applicant seeks time to file Board Resolution authorizing the signatory undertaking to sign the same. One week time granted to do the needful.*

List the matter on 20.01.2025."

The Applicant has filed a copy of the board resolution wherein the name of the signatory has been mentioned as "Sujit Vaidya" whereas in the affidavit of undertaking the name is mentioned as "Sujit Vijay Vaidya".

The Applicant, is therefore, directed to reconcile and clarify the same by filing an affidavit with relevant documents within one week.

List the matter **on 03.03.2025.**

-Sd-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

ANAND DUBEY